

COLLECTION · SELLERS

The location certificate

*When, why and how much — the document that
can block a sale*

READ BEFORE YOU BEGIN

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The location certificate

When, why and how much — the document that can block a sale

The location certificate is one of the most important — and most misunderstood — documents in a real estate transaction in Quebec. An expired or non-compliant certificate can delay, complicate or derail a sale.

This guide explains what this document is, when it must be renewed, what the irregularities it can reveal are, and how to anticipate it on the seller's side.

Informational content: special cases are handled with the notary and the land surveyor. Each chapter ends with a lined “My notes” page.

The location certificate is one of the most misunderstood documents — and one of the most capable of delaying a sale. This guide explains its role, when it must be renewed, the irregularities it reveals, and how to anticipate costs and timelines.

The key message: deal with it early, never the day before signing.

CHAPTER

What is a location certificate?

Understanding the role of this survey document.

The location certificate is a document prepared by a land surveyor that describes the property's current state: lot boundaries, the location of the buildings, easements, any encroachments, and compliance with the regulations and titles.

It includes a plan and a report. It lets the buyer, the lender and the notary know exactly what is being sold and whether everything is compliant.

The location certificate is a survey document that describes the property's condition and situation (boundaries, buildings, easements, encroachments). The lender and the notary require it: it's a key document that must reflect the current reality at the time of the sale.

EMILIE'S TIP

Think of the location certificate as the property's “ID card”. It's what confirms that what you're selling really matches the titles and the regulations.

CHAPTER

When do you need a new certificate?

Knowing whether yours is still valid.

A certificate can become insufficient if it's too old or no longer reflects the current state of the premises. The notary and the lender require a certificate that matches the present reality.

- Too old: standards and the state of the premises may have changed.
- Changes since (an addition, a shed, a pool, a fence, a driveway): the certificate doesn't show them.
- A regulatory or boundary change: can make it non-compliant.

When in doubt, order a new certificate from a land surveyor. It takes time: better to start early.

A certificate becomes insufficient if it's too old or no longer matches the state of the premises (an addition, a shed, a pool, a fence, a new easement). When in doubt, have it checked early: producing a new certificate takes time you shouldn't discover at the last minute.

EMILIE'S TIP

If you've added anything since your certificate (a shed, a pool, an addition), assume it needs updating. Anticipate: a surveyor doesn't produce a certificate overnight.

CHAPTER

The irregularities it can reveal

Anticipating the problems to fix before the sale.

- Encroachment: a building (yours or a neighbour's) that crosses the boundary.
- Easement: a third party's right over your lot (right-of-way, public utility).
- Non-compliance with setbacks or municipal regulations.
- A discrepancy between the reality and the titles.

Some irregularities are minor; others require fixes, a regularization or a negotiation. Discovering them early keeps them from blocking the sale at the last minute.

The certificate can reveal irregularities to fix: an encroachment (a building that crosses a boundary), non-compliance with the regulations, a forgotten easement. Better to discover them — and deal with them — before the sale than to have them block the transaction at the notary's.

EMILIE'S TIP

Have your certificate read by the notary BEFORE listing. Settling an irregularity upfront is far simpler than discovering it under pressure, an offer in hand.

CHAPTER

Costs, timelines and good anticipation

Planning this often-forgotten item.

A new certificate represents a cost (the surveyor's fees, varying by property) and above all a production lead time. In a sale, that lead time can be critical if you start late.

- Check your certificate as soon as you consider selling.
- Order a new one early if necessary.
- Factor this cost and lead time into your selling schedule.

A new certificate represents a cost (surveyor's fees) and above all a lead time. It's an often-forgotten item: anticipate it from the decision to sell, and negotiate in the promise to purchase who pays for it, to avoid last-minute tensions.

EMILIE'S TIP

Treat the location certificate as the very first box to check in your sale. It's the document that, forgotten, most often delays a signing at the notary's.

CHAPTER

When the certificate no longer suffices

Reacting to an inadequate certificate.

A location certificate can be **expired** or no longer reflect the reality (after work, an addition, a new fence). Your options:

- Have a **new certificate** produced by a land surveyor.
- Consider **title insurance**, which can sometimes bridge the gap depending on the case.
- Negotiate **who pays** for the new certificate in the promise to purchase.

The lender and the notary generally require a certificate that reflects the current state: better to settle the question early.

If the certificate is expired or inadequate, several options: have a new one produced, or sometimes resort to title insurance depending on the case. Address the question as early as the promise to purchase, never the day before signing — that's where it snags most often.

EMILIE'S TIP

Address the certificate question as early as the promise to purchase, not the day before signing. Producing a new certificate takes time, and it's often negotiable: who pays is decided at the start.

IN PRACTICE

Action plan

Your next steps, concretely.

This week

1. Find my location certificate and check its date.
2. List the additions made since (shed, pool, addition).

Within 30 days

1. Have the certificate read by the notary.
2. Order a new certificate if necessary, early.

Next

1. Settle any irregularity before listing.

To anticipate

1. Check, as soon as you decide to sell, whether my certificate is still valid.
2. Settle any irregularity in advance and agree on who pays for a new certificate.

REFERENCES

Resources & glossary

- Location certificate: a survey document describing the property's state.
 - Land surveyor: the professional who produces the certificate.
 - Encroachment: a building that crosses a lot boundary.
 - Easement: a third party's right over your property.
 - Non-compliance: a discrepancy with the regulations or the titles.
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- Location certificate: a survey document describing the property's condition and situation.
 - Land surveyor: the professional who produces the certificate.
 - Encroachment: a construction crossing a property boundary.
 - Easement: a right burdening one lot for the benefit of another.
 - Title insurance: protection covering certain title or compliance problems.

GOING FURTHER

Quiz — test your knowledge

1. The location certificate is prepared by:

- A) The notary
- B) A land surveyor
- C) The inspector
- D) The broker

2. It notably describes:

- A) The colour of the walls
- B) Boundaries, buildings, easements and compliance
- C) The rent
- D) The school tax

3. A certificate can become insufficient if it's:

- A) Recent
- B) Too old or no longer reflecting the premises
- C) Signed
- D) Coloured

4. An addition like a pool or a shed:

- A) Has no effect
- B) May require a new certificate
- C) Is illegal
- D) Lowers the taxes

5. An encroachment is:

- A) A tax
- B) A building that crosses the lot boundary
- C) An insurance
- D) A piece of furniture

6. An easement is:

- A) A tax
- B) A third party's right over your lot
- C) A room
- D) A permit

7. You should have the certificate read by the notary:

- A) After the sale
- B) Before listing
- C) Never
- D) At the move

8. The certificate is often the document that:

- A) Speeds everything up
- B) Forgotten, most delays a signing
- C) Is unimportant
- D) Replaces the inspection

Answer key

- 1. **B** — It's a survey document (ch. 1).
- 2. **B** — It's the property's "ID card" (ch. 1).
- 3. **B** — It must match the present reality (ch. 2).
- 4. **B** — The certificate doesn't show it (ch. 2).
- 5. **B** — A possible irregularity (ch. 3).
- 6. **B** — For example a right-of-way (ch. 3).
- 7. **B** — Settling upfront avoids blockages (ch. 3).
- 8. **B** — To be dealt with as a priority (ch. 4).

Signé PAR Em

*Thank you for reading. May this guide help you
decide with confidence, with all the information
in hand.*

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